UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF KENTUCKY
LOUISVILLE DIVISION
CIVIL ACTION NO. 3:25-CV-00740-DJH

CHARLES ZOELLER — PLAINTIFF

vs.

OFFICER WALTER BAKER, *et al.* — DEFENDANTS

DEFENDANTS BULLITT COUNTY SHERIFF WALT SHOLAR AND BULLITT COUNTY SHERIFF'S OFFICE'S MOTION TO DISMISS

Come Defendants, Bullitt County Sheriff Walt Sholar, individually and in his official capacity, and Bullitt County Sheriff's Office (hereafter collectively "these Defendants"); by counsel, pursuant to *Fed. R. Civ. P.* 12(b)(6) and LR 7.1 and respectfully move this Court to enter the Order filed in conjunction with this Motion thereby dismissing the claims in Plaintiff's Complaint against these Defendants. A memorandum in support is attached hereto and adopted and incorporated by reference as if fully set forth herein.

Respectfully submitted,

/s/ Carol Schureck Petitt
Carol Schureck Petitt
Matthew R. Bastin
VAUGHN PETITT LEGAL GROUP, PLLC
7500 West Highway 146
Pewee Valley, Kentucky 40056
cpetitt@vplegalgroup.com
mbastin@vplegalgroup.com
COUNSEL FOR DEFENDANTS SHERIFF WALT SHOLAR AND BULLITT COUNTY SHERIFF'S OFFICE

CERTIFICATE OF SERVICE

It is hereby certified that on this 19th day of January 2026, a true and correct copy of the foregoing document was filed and served via the CM/ECF system and/or U.S. Mail to:

Adrienne Southworth
112 Poplar Drive
Lawrenceburg, KY 40342
502-600-1547
AttAky@proton.me
COUNSEL FOR PLAINTIFF

Mark A. Osbourn
Bush & Osbourn, PLLC
435 Brownsboro Rd., Suite 110
Louisville, KY
502-609-2609
mosbourn@bushosbourn.com
COUNSEL FOR HILLVIEW DEFENDANTS

Troy Michael Brown, Registered Agent
Troy's Wrecker Service, Inc.
870 Old Preston Hwy. North
Louisville, KY 40229

/s/ Carol Schureck Petitt
VAUGHN PETITT LEGAL GROUP, PLLC